

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR
EXAMINERS

STATE OF COLORADO

Case No. 2015-2646

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF THE APPLICATION FOR LICENSURE TO PRACTICE
PROFESSIONAL COUNSELING IN THE STATE OF COLORADO OF DANIELLE
HACKETT, LPC (Pending),

Applicant.

IT IS HEREBY STIPULATED by and between the State Board of Licensed Professional Counselor Examiners ("Board") and Danielle Hackett ("Applicant") as follows:

1. By application dated August 13, 2014, Applicant applied for licensure to practice as a Licensed Professional Counselor ("LPC") in the State of Colorado ("Application").
2. The Board has jurisdiction over Applicant, the Application, and the subject matter of this Stipulation and Final Agency Order ("Order").
3. It is the intent of the parties and the purpose of this Order to provide for a settlement of all matters arising out of the Application without the necessity of holding a formal hearing. This Order is a full and final resolution of case number 2015-2646. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board or Applicant, as of the effective date of this Order.
4. Applicant admits the following:
 - a. On or about August 13, 2014, Applicant applied for licensure as a LPC in the State of Colorado, and her licensure request is currently pending.
 - b. On her Application, Applicant answered "yes" to question 1 which states: "Have you ever been notified by any state, territory, district, country, United States government agency, or state certification/licensing board of any complaint filed against you relative to the practice of psychotherapy?"

c. On her Application, Applicant answered "yes" to question 2 which states: "Has any disciplinary action ever been taken regarding any psychotherapy/drug and alcohol services certification/license which you now hold or have ever held?"

d. On her Application, Applicant answered "yes" to question 4 which states: "Have you ever voluntarily surrendered a certification/license to practice psychotherapy in any state?"

e. On or about September 2, 2011, Applicant was licensed as a clinical professional counselor in Maine, having been issued license number CC3810, which expired on September 30, 2013.

f. On or around March 24, 2014, Applicant entered into a Consent Agreement ("Agreement") with the State of Maine, Board of Counseling Professional Licensure ("Maine Board") regarding Complaint No. 2013-COU-9293. While her license was active in Maine, Applicant admitted to engaging in a Level 2 sexual activity dual relationship with a prison in-mate client and surrendered her license. If Applicant should ever seek licensure with the Maine Board at any time in the future, she agreed to supervised probation for two (2) years and continuing education hours in ethics and ethical decision-making.

g. Pursuant to Maine's Board Rules, "Level 2 sexual activity" includes "words, gestures, expressions, or behaviors ... that are seductive, sexually suggestive or sexualized."

h. Applicant admitted to disciplinary action in another jurisdiction.

5. By virtue of the facts admitted in paragraph 4 above, Applicant admits and the Board finds that the above conduct is a violation of §12-43-222(2), C.R.S.

6. By virtue of the admissions contained in paragraph 4, Applicant specifically agrees to accept a license subject to the terms and conditions outlined below. Applicant further agrees that the Board is authorized by §§12-43-212 and 12-43-224(3)(c), C.R.S., to grant Applicant a license. Applicant consents to the following limitations to her license within the meaning of §24-4-104(11), C.R.S. Applicant acknowledges that by accepting this license in lieu of a formal hearing, Applicant waives all remedies outlined in §§12-43-212 and 24-4-104(9), C.R.S.

PROBATION

7. Applicant's license shall be placed on probation for a minimum period of two (2) years. Credit toward satisfying the period of probation shall be given only during such periods of time that Applicant is in total compliance with all provisions of this Order. The prescribed period of probation shall not run during any period of time when:

- a. Applicant is not practicing as a LPC or engaged in the practice of professional counseling in the State of Colorado;
- b. Applicant is not actively participating in a Board-approved peer assistance services program as set forth below in paragraph 8 of this Order; and
- c. Applicant is not otherwise in full compliance with the terms of this Order.

PEER ASSISTANCE SERVICES

8. As a term of this Order and Applicant's probationary status, Applicant shall enter into and successfully complete a contract with PAS for a minimum period of two (2) years, or until successful completion of the probationary terms and conditions ordered herein, whichever occurs later. Applicant must enter into a contract with PAS within fourteen (14) days from the effective date of this Order, or Applicant agrees to cease practice after fourteen (14) days until such time as Applicant enters into a contract with PAS.

a. Urine/Blood Screens. If required as a term of her contract with PAS, Applicant shall submit to full panel urine or blood tests during participation in PAS, as ordered by the Board, Applicant's employer, or Applicant's treatment program monitor, at a frequency determined by Applicant's treatment program contract. All screens or tests shall be administered and monitored by approved program personnel. An overly dilute or missed urine screen or blood test shall be presumed positive for prohibited substances. Use or ingestion of poppy seeds or hemp oil shall not excuse a positive urine screen or blood test. Applicant must submit satisfactory verified test results for all random urine screening or blood testing conducted as part of Applicant's treatment program with Applicant's application for discharge of the probation period.

b. Other Requirements. Applicant shall comply fully and in a timely manner with all requirements, recommendations, and directions of the treatment program, as administered by PAS. Requirements, recommendations, and directions may include but shall not be limited to:

i. Submission by Applicant to such examinations as PAS may deem appropriate to determine Applicant's physical or mental condition or Applicant's professional qualifications (the parameters of any such examination shall be specified to the extent possible to pinpoint the underlying condition for which the examination is being required);

ii. The taking by Applicant of such therapy courses or training or education as may be needed to correct deficiencies found by such examination;

iii. The review or supervision of Applicant's practice as may be necessary to determine the quality of Applicant's practice and to correct deficiencies therein; and

iv. The imposition of restrictions upon the nature of Applicant's practice to assure that Applicant does not practice beyond the limits of her capabilities.

c. Releases. Applicant hereby waives any right or claim of confidentiality to any information, test results, or other data pertaining to Applicant's treatment progress, or lack thereof, with PAS, and will execute a release authorizing PAS to release any and all information pertaining to Applicant's case to the Board upon its request. Applicant shall keep all releases current and in effect.

d. Completion of Program. If Applicant satisfactorily completes the treatment program, verification to the Board by PAS of the completion of treatment shall be deemed sufficient, and the requirements set out herein shall be deemed satisfied, unless other information is reasonably required by the Board to verify Applicant's completion of treatment. It is Applicant's responsibility to ensure that PAS submits verification to the Board of completion of treatment.

e. Withdrawal from Program. Applicant must immediately notify the Board in writing if Applicant withdraws from, is removed from, is terminated from, or otherwise fails to participate fully and satisfactorily in Applicant's treatment program.

CONTINUING EDUCATION

9. During the period of probation, Applicant must successfully complete at least twenty (20) hours of Board-approved professional continuing education ("CE") courses each year in the areas of ethics, ethical decision making, dual relationships, boundaries, and treating inmate populations. These CE hours shall be completed in-person, and may not be online classes. Applicant shall obtain board approval of the courses prior to enrolling in each course. Upon completion of a course, Applicant shall ensure that a certificate of completion is provided to the Board. These hours of CE completed pursuant to this section shall be required in addition to, and may not be counted toward, the mandatory Continuing Professional Development requirements for an active Colorado license or to meet any other licensure requirements.

TERMS AND CONDITIONS

10. Applicant will strictly observe the prohibitions set forth in §12-43-222, C.R.S., and will ensure that she does not engage in any activities that are prohibited and that she practices in accordance with the generally accepted standards of practice.

11. Applicant shall not supervise or consult with other mental health providers for the purpose of those persons providing mental health services, unless such supervision or consultation is monitored in accordance with this Order.

12. All expenses incurred or associated with education or any other requirement necessary to fulfill the terms of this Order, shall be the sole responsibility of Applicant and not the Board.

13. In the event Applicant relocates at any time during the probationary period, Applicant shall notify the Board of the change of address within 30 days of the effective date of such change.

14. Applicant is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to §12-43-224, C.R.S., and hereby waives those rights. Further, Applicant also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

15. This Order is entered into by Applicant voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to formal hearing on all matters herein.

16. This Order shall become an order of the Board when it is accepted and signed by the Program Director or authorized Board representative.

17. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board order for purposes of §12-43-222, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to §12-43-224, C.R.S.

18. Applicant acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for further disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Applicant to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

19. This Order constitutes the entire agreement between Applicant and the Board. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

20. This Order shall become effective upon (a) mailing by first-class mail to Applicant at Applicant's address of record with the Board, or (b) service by electronic means on Applicant at Applicant's electronic address of record with the Board. Applicant hereby consents to service by electronic means if Applicant has an electronic address on file with the Board.

21. This Order shall be a public record in the custody of the Board.

AGREED TO AND ACCEPTED BY:

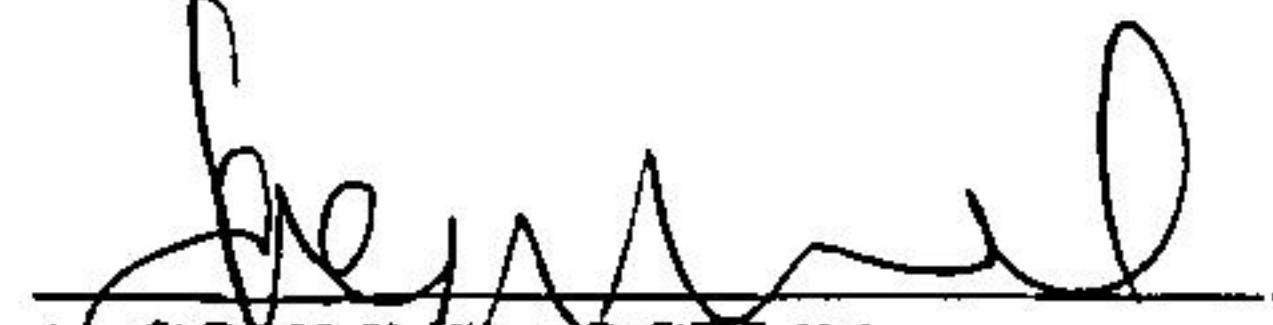
APPLICANT



DANIELLE HACKETT
LPC NO. (Pending)

AGREED TO AND ORDERED BY:

**BOARD OF LICENSED PROFESSIONAL
COUNSELOR EXAMINERS**



JACQUILINE ARCELIN
Program Director

Effective this 23rd day of

July, 2015.